APPROVED ON OCTOBER 7, 2026
BY THE BOARD OF COUNTY COMMISSIONERS
AT THE WEEKLY BUSINESS SESSION

Legal Counsel Update: October 1, 2026
10:00 a.m. – Board of Commissioners Conference Room

Attending: Commissioners Ron A. Smith; Colene M. Martin; Gary L. Richardson; Wally Hicks, Legal Counsel; and Nikole Guzman, Recorder

Legal Counsel Update

1. **Declaration of Potential Conflicts of Interest**

   Commissioners Richardson, Martin, and Smith each declared no potential conflicts of interest regarding the matters before the Board.

2. **(For 10/7 WBS) Administrative Policy Revision: F-01; Social Media Policy**

   Wally Hicks, Legal Counsel, introduced the proposed revisions to Administrative Policy F-01, Social Media Policy. Thomas Gray, Public Information Officer, explained that the existing policy no longer fully reflected current County practices or developments in communications and First Amendment law. The proposed revisions clarify that County social media accounts are for official County business, that personal accounts should not be used for official County business, and that social-media records must be maintained for public-records purposes. The revisions also establish clearer standards for public comments, including treatment of scams, explicit material, spam and automated accounts while protecting lawful criticism and other protected speech.

   Gray explained that decisions to remove comments or block users would be centralized with the Information Technology Director, with input from the Public Information Officer and Legal Counsel, to promote consistent application of the policy. The Board discussed staff workload, whether comments may be disabled on some accounts, repeated rule violations, bot activity, and employee compliance with County social-media rules. Gray noted that County accounts are not monitored 24 hours a day and that disciplinary issues involving employees remain governed by the personnel policy. *The Board reached consensus to place Administrative Policy F-01 on the October 7, 2026 Weekly Business Session agenda, with Gray to provide an overview.*

3. **(For 10/7 WBS) Administrative Policy Revision: F-06; Public Records Policy**

   Hicks and Gray presented the proposed revision to Administrative Policy F-06, Public Records Policy. Gray stated that the revisions were intended to bring the policy into alignment with current law and County practice and to create a consistent process for public-records requests. The draft was reviewed with Oregon Public Records Advocate Todd Albert, and his recommendations were incorporated. The policy clarifies the distinction between records administered through the Board's designated Records Management Officer and records for which an independently elected County official acts as custodian, including the different appeal paths that may apply.

   The revised policy also standardizes intake procedures by requiring use of a County public-records request form and identifying allowable methods and locations for submitting

requests. Gray discussed the planned rollout of JustFOIA, including a general County intake form and a separate law-enforcement records form for the Sheriff's Office. The Board expressed support for the modernization and consistency of the revised process. *The Board reached consensus to place Administrative Policy F-06 on the October 7, 2026 Weekly Business Session agenda, with Gray to provide an overview.*

4. Josephine County Strategic Communications Plan

Gray presented the Josephine County Strategic Communications Plan and recommended that it be maintained as an Information Technology departmental policy rather than adopted as a formal Board policy. He explained that the plan is intended to be a living document that can be updated as communication needs change, while still returning to the Board for periodic review and at least annual reporting. The plan includes future development of crisis-communications procedures and allows staff to adapt tactics when immediate communication needs arise.

The Board discussed program costs, public benefit, accessibility, and how the County would reach residents who do not use social media or have reliable internet access. Gray said current maintenance costs are within the IT budget and estimated a future communications budget in the general range of $30,000 to $50,000 annually as the program develops. He identified public-records compliance, emergency communication, promotion of County programs and services, print materials, in-person outreach, translations, and measurable communication metrics as components of the plan. *The Board approved the Strategic Communications Plan without objection as a living departmental policy under Information Technology.*

5. Departmental Policy - Board of County Commissioners Direct Reports

Hicks and Natalie Eckhardt-Doupe, Interim Human Resources Director, presented a proposed process for personnel matters involving employees who report directly to the Board. Eckhardt-Doupe explained that the purpose is to create a predictable procedure that can be followed regardless of who is serving as Human Resources Director, particularly because Public Meetings Law affects how personnel matters involving direct Board reports must be handled.

The Board discussed whether the document should be characterized as a policy or procedure and where it should reside. Consensus favored Human Resources maintaining the procedure as the single authoritative source, with the Personnel Policy Manual amended to reference the separate procedure. The Board also discussed making the procedure publicly accessible and maintaining Human Resources' ability to consult labor counsel regarding implementation. *The Board reached consensus to proceed with the process. Hicks indicated he would prepare a formal amendment to the Personnel Policy Manual referencing the procedure; no separate formal motion was taken.*

6. Proposed Resolution; In the Matter of Affirming Compliance with State and Federal Law and Requesting That the State of Oregon Address Counties’ Federal Funding and False Claims Act Exposure

Hicks presented a draft resolution concerning County compliance with state and federal law and potential federal-funding and False Claims Act exposure when state and federal requirements conflict. The Board discussed the effect of Oregon laws concerning immigration and sanctuary policies, federal grant certifications, and the concern that counties could be placed between inconsistent state and federal requirements. Hicks explained that the proposed resolution would be non-binding and would serve to formally notify state and federal officials of the County's concerns.

Commissioner Martin discussed a similar resolution considered in Douglas County and raised concern about protecting opportunities for federal grant funding, including funding sought for the County's communications system. The Board agreed that the draft needed additional review and revision before adoption. Legal Counsel was directed to continue refining the language and bring the revised matter to a Weekly Business Session for public discussion before any final action.

Chair Smith called a recess at 11:04 a.m. The Board reconvened in Open Session at 11:07 a.m.

Chair Ron Smith called for Executive Session at 11:08 a.m. pursuant to ORS 192.660(2)(f), to consider information or records exempt by law from public inspection under ORS 192.345(23). Accredited news-media representatives were directed not to report or disclose the deliberations or statements made during Executive Session. Chair Smith stated that no final decision would be made in Executive Session and that the Board would return to Open Session before taking action.

Additional Attendees: Wally Hicks, Legal Counsel; Ryan Johnson, Facilities Director; and Chrissy Ewald, Daily Courier.

7. Executive Session

a. Court Security Advisory Committee update – ORS 192.660(2)(f) & 192.345(23)

Executive Session adjourned at 12:00 p.m.

Legal Counsel Update Continued

8. Court Security Advisory Committee update

The Board reconvened in Open Session at 12:00 p.m. Chair Smith stated that the Board had received the Court Security Advisory Committee update. No formal action was taken.

9. Additional Subjects/Matters from Commissioners – ORS 192.640(1)

Commissioner Richardson reported that Senator Merkley's office had requested a briefing regarding the proposed Outstanding Resource Waters designation affecting the Illinois Valley. He provided the Board with a draft briefing for review before sending it to the Senator's office and noted that much of the underlying information had already been shared with other congressional contacts. Commissioners Martin and Smith reported no additional matters.

There being no further business, the Legal Counsel Update adjourned at 12:00 p.m.